

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 691

BY JUDICIARY, RULES AND ADMINISTRATION COMMITTEE

AN ACT

RELATING TO CHILD PROTECTION; AMENDING SECTION 16-1602, IDAHO CODE, TO RE-
VISE A DEFINITION; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFEC-
TIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 16-1602, Idaho Code, be, and the same is hereby
amended to read as follows:

16-1602. DEFINITIONS. For purposes of this chapter:

(1) "Abused" means any case in which a child has been the victim of:

(a) Conduct or omission resulting in skin bruising, bleeding, mal-
nutrition, burns, fracture of any bone, head injury, soft tissue
swelling, failure to thrive or death, and such condition or death is not
justifiably explained, or where the history given concerning such con-
dition or death is at variance with the degree or type of such condition
or death, or the circumstances indicate that such condition or death may
not be the product of an accidental occurrence; or

(b) Sexual conduct, including rape, molestation, incest, commercial
sexual activity, obscene or pornographic photographing, filming or de-
piction for commercial purposes, human trafficking as defined in chap-
ter 86, title 18, Idaho Code, or other similar forms of sexual exploita-
tion harming or threatening the child's health or welfare or mental in-
jury to the child.

(2) "Abandoned" means the failure of the parent to maintain a normal
parental relationship with his child including, but not limited to, reason-
able support or regular personal contact. Failure to maintain this rela-
tionship without just cause for a period of one (1) year shall constitute
prima facie evidence of abandonment.

(3) "Adaptive equipment" means any piece of equipment or any item that
is used to increase, maintain or improve the parenting capabilities of a par-
ent with a disability.

(4) "Adjudicatory hearing" means a hearing to determine:

(a) Whether the child comes under the jurisdiction of the court pur-
suant to the provisions of this chapter;

(b) Whether continuation of the child in the home would be contrary to
the child's welfare and whether the best interest of the child requires
protective supervision or vesting legal custody of the child in an au-
thorized agency.

(5) "Age of developmentally appropriate" means:

(a) Activities that are generally accepted as suitable for children of
the same chronological age or level of maturity or that are determined
to be developmentally appropriate for a child, based on the development

1 of cognitive, emotional, physical and behavioral capacities that are
2 typical for an age or age group; and

3 (b) In the case of a specific child, activities or items that are suit-
4 able for the child based on the developmental stages attained by the
5 child with respect to the cognitive, emotional, physical and behavioral
6 capacities of the child.

7 (6) "Aggravated circumstances" includes, but is not limited to:

8 (a) Circumstances in which the parent has engaged in any of the follow-
9 ing:

10 (i) Abandonment, chronic abuse or chronic neglect of the child.
11 Chronic neglect or chronic abuse of a child shall consist of abuse
12 or neglect that is so extreme or repetitious as to indicate that
13 return of the child to the home would result in unacceptable risk
14 to the health and welfare of the child.

15 (ii) Sexual abuse against a child of the parent. Sexual abuse, for
16 the purposes of this section, includes any conduct described in
17 section 18-1506, 18-1506A, 18-1507, 18-1508, 18-1508A, 18-6101,
18 or 18-6604, or chapter 86, title 18, Idaho Code.

19 (iii) Torture of a child. Any conduct listed in section
20 18-8303(1), Idaho Code; battery or an injury to a child that re-
21 sults in serious or great bodily injury to a child; voluntary
22 manslaughter of a child, or aiding or abetting such voluntary
23 manslaughter, soliciting such voluntary manslaughter or attempt-
24 ing or conspiring to commit such voluntary manslaughter;

25 (b) The parent has committed murder, aided or abetted a murder, so-
26 licited a murder or attempted or conspired to commit murder; or

27 (c) The parental rights of the parent to another child have been termi-
28 nated involuntarily.

29 (7) "Authorized agency" means the department, a local agency, a person,
30 an organization, corporation, benevolent society or association licensed
31 or approved by the department or the court to receive children for control,
32 care, maintenance or placement.

33 (8) "Caregiver" means a foster parent with whom a child in foster care
34 has been placed or a designated official for a child care institution in
35 which a child in foster care has been placed.

36 (9) "Case plan hearing" means a hearing to approve, modify or reject the
37 case plan as provided in section 16-1621, Idaho Code.

38 (10) "Child" means an individual who is under the age of eighteen (18)
39 years.

40 (11) "Child advocacy center" or "CAC" means an organization that ad-
41 heres to national best practice standards established by the national
42 membership and accrediting body for children's advocacy centers and that
43 promotes a comprehensive and coordinated multidisciplinary team response to
44 allegations of child abuse by maintaining a child-friendly facility at which
45 appropriate services are provided. These services may include forensic in-
46 terviews, forensic medical examinations, mental health services and other
47 related victim services.

48 (12) "Circumstances of the child" includes, but is not limited to, the
49 joint legal custody or joint physical custody of the child.

50 (13) "Commit" means to transfer legal and physical custody.

1 (14) "Concurrent planning" means a planning model that prepares for and
2 implements different outcomes at the same time.

3 (15) "Court" means district court or magistrate division thereof or, if
4 the context requires, a magistrate or judge thereof.

5 (16) "Custodian" means a person, other than a parent or legal guardian,
6 to whom legal or joint legal custody of the child has been given by court or-
7 der.

8 (17) "Department" means the department of health and welfare and its au-
9 thorized representatives.

10 (18) "Disability" means, with respect to an individual, any mental or
11 physical impairment that substantially limits one (1) or more major life
12 activities of the individual including, but not limited to, self-care, man-
13 ual tasks, walking, seeing, hearing, speaking, learning or working, or a
14 record of such an impairment, or being regarded as having such an impairment.
15 Disability shall not include transvestism, transsexualism, pedophilia,
16 exhibitionism, voyeurism, other sexual behavior disorders, or substance use
17 disorders, compulsive gambling, kleptomania or pyromania. Sexual prefer-
18 ence or orientation is not considered an impairment or disability. Whether
19 an impairment substantially limits a major life activity shall be determined
20 without consideration of the effect of corrective or mitigating measures
21 used to reduce the effects of the impairment.

22 (19) "Family or household member" shall have the same meaning as in sec-
23 tion 39-6303(6), Idaho Code.

24 (20) "Foster care" means twenty-four (24) hour substitute parental care
25 for children placed away from their parents or guardians by persons who may
26 or may not be related to the children and for whom the state agency has place-
27 ment and care responsibility.

28 (21) "Foster parent" means a person or persons licensed to provide fos-
29 ter care.

30 (22) "Grant administrator" means the supreme court or any organization
31 or agency as may be designated by the supreme court in accordance with such
32 procedures as may be adopted by the supreme court. The grant administrator
33 shall administer funds from the guardian ad litem account in accordance with
34 the provisions of this chapter.

35 (23) "Guardian ad litem" means a person appointed by the court pursuant
36 to a guardian ad litem volunteer program to act as special advocate for a
37 child under this chapter.

38 (24) "Guardian ad litem coordinator" means a person or entity receiving
39 moneys from the grant administrator for the purpose of carrying out any of
40 the duties set forth in section 16-1632, Idaho Code.

41 (25) "Guardian ad litem program" means the program to recruit, train and
42 coordinate volunteer persons to serve as guardians ad litem for abused, ne-
43 glected or abandoned children.

44 (26) "Homeless," as used in this chapter, shall mean that the child is
45 without adequate shelter or other living facilities, and the lack of such
46 shelter or other living facilities poses a threat to the health, safety or
47 well-being of the child.

48 (27) "Idaho network of children's advocacy centers" means an organiza-
49 tion that provides education and technical assistance to child advocacy cen-

ters and to interagency multidisciplinary teams developed pursuant to section 16-1617, Idaho Code.

(28) "Law enforcement agency" means a city police department, the prosecuting attorney of any county, state law enforcement officers, or the office of a sheriff of any county.

(29) "Legal custody" means a relationship created by court order, which vests in a custodian the following rights and responsibilities:

(a) To have physical custody and control of the child, and to determine where and with whom the child shall live.

(b) To supply the child with food, clothing, shelter and incidental necessities.

(c) To provide the child with care, education and discipline.

(d) To authorize ordinary medical, dental, psychiatric, psychological, or other remedial care and treatment for the child, including care and treatment in a facility with a program of services for children, and to authorize surgery if the surgery is deemed by two (2) physicians licensed to practice in this state to be necessary for the child.

(e) Where the parents share legal custody, the custodian may be vested with the custody previously held by either or both parents.

(30) "Mental injury" means a substantial impairment in the intellectual or psychological ability of a child to function within a normal range of performance and/or behavior, for short or long terms.

(31) (a) "Neglected" means ~~a child~~:

(i) Any recent act or failure to act on the part of a parent, guardian, or other custodian that results in death, serious physical or emotional harm, sexual abuse, or exploitation of a child;

(ii) An act or failure to act on the part of a parent, guardian, or other custodian that presents an imminent risk of serious harm to a child;

(iii) A parent, guardian, or other custodian is unable to discharge the responsibilities to and for a child and, as a result of such inability, the child lacks the parental care necessary for the child's health, safety, or well-being and has suffered serious harm or is likely to suffer imminent serious harm;

(iv) A child has been placed for care or adoption in violation of law; or

(v) A child is without proper education because of the failure to comply with section 33-202, Idaho Code.

(b) No child whose parent or guardian chooses for such child a second opinion, or further information and alternatives, regarding medical treatment shall be deemed for that reason alone to be neglected or lack the parental care necessary for the child's health and well-being.

~~(a) (c) Who is without proper parental care and control, or subsistence, medical or other care or control necessary for his well-being because of the conduct or omission of his parents, guardian or other custodian or their neglect or refusal to provide them; however, no~~
No child whose parent or guardian chooses for such child treatment by prayers through spiritual means alone in lieu of medical treatment shall be deemed for that reason alone to be neglected or lack parental care necessary for his health and well-being, but this.

(d) This subsection shall not prevent the court from acting pursuant to section 16-1627, Idaho Code; ~~or.~~

~~(b) Whose parent, guardian or other custodian is unable to discharge the responsibilities to and for the child and, as a result of such inability, the child lacks the parental care necessary for his health, safety or well-being; or~~

~~(c) Who has been placed for care or adoption in violation of law; or~~

~~(d) Who is without proper education because of the failure to comply with section 33-202, Idaho Code.~~

(32) "Order to prevent removal," as described in section 16-1611(5), Idaho Code, means an order to allow a child to remain in the child's present surroundings when there is reasonable cause to believe the child is safe in the sole care of one (1) parent, legal guardian, or legal custodian and when there is alleged neglect or abuse by another parent, legal guardian, or legal custodian.

(33) "Permanency hearing" means a hearing to review, approve, reject or modify the permanency plan of the department and to review reasonable efforts in accomplishing the permanency plan.

(34) "Permanency plan" means a plan for a continuous residence and maintenance of nurturing relationships during the child's minority.

(35) "Protective supervision" is a legal status created by court order in a child protective case whereby the child is in the legal custody of his or her parent(s), guardian(s) or other legal custodian(s), subject to supervision by the department.

(36) "Psychotropic medication" means a drug prescribed to affect psychological functioning, perception, behavior or mood. Psychotropic medications include, but are not limited to, antidepressants, mood stabilizers, antipsychotics, antianxiety medications, sedatives and stimulants.

(37) "Qualified individual" means a trained professional or licensed clinician who is not connected to or affiliated with any placement setting in which children are placed by the department and who is not an employee of child and family services, unless a waiver has been approved by the authorized agency.

(38) "Qualified residential treatment program" means a program that has a trauma-informed treatment model designed to address the needs of children with serious emotional or behavioral disorders or disturbances, is able to implement the treatment identified for the child by the assessment of the child required under section 16-1619A(2), Idaho Code, and is licensed and accredited in accordance with state and federal law.

(39) "Reasonable and prudent parent standard" means the standard of care characterized by careful and sensible parental decisions that maintain the health, safety and best interests of a child while simultaneously encouraging the emotional and developmental growth of the child that a caregiver shall use when determining whether to allow a child in foster care under the responsibility of the state to participate in extracurricular, enrichment, cultural or social activities.

(40) "Relative" means a child's grandparent, great grandparent, aunt, great aunt, uncle, great uncle, brother-in-law, sister-in-law, first cousin, sibling and half-sibling.

1 (41) "Residual parental rights and responsibilities" means those
2 rights and responsibilities remaining with the parents after the transfer of
3 legal custody including, but not necessarily limited to, the right of visi-
4 tation, the right to consent to adoption, the right to determine religious
5 affiliation, the right to family counseling when beneficial, and the respon-
6 sibility for support.

7 (42) "Shelter care" means places designated by the department for tem-
8 porary care of children pending court disposition or placement.

9 (43) "Supportive services," as used in this chapter, shall mean ser-
10 vices that assist parents with a disability to compensate for those aspects
11 of their disability that affect their ability to care for their child and
12 that will enable them to discharge their parental responsibilities. The
13 term includes specialized or adapted training, evaluations or assistance
14 with effectively using adaptive equipment and accommodations that allow
15 parents with a disability to benefit from other services including, but not
16 limited to, Braille texts or sign language interpreters.

17 SECTION 2. An emergency existing therefor, which emergency is hereby
18 declared to exist, this act shall be in full force and effect on and after
19 July 1, 2026.